

Court No. - 21

Case :- WRIT - C No. - 4109 of 2018

Petitioner :- Rajesh Kumar Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Girish Tiwari

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Shailendra Kumar Agrawal,J.

It is contended that the appeal filed by the petitioner under Section 127 of the Electricity Act challenging the assessment order was allowed by the appellate authority vide order dated 27.4.2017 and while setting aside the assessment order the respondent-Corporation was directed to make a fresh assessment in accordance with law and the provisions contained in Clause 5.1 of the Electricity Supply Code, 2005 but till date no provisional assessment has been made and the authority is illegally retaining the amount deposited by the petitioner in pursuance of the provisional assessment and he is entitled to be refunded the same.

Sri Pranjal Mehrotra, who has accepted notices on behalf of respondents no. 2 and 3 may seek instruction in the matter and produce the record within ten days.

Put up as fresh on 13.02.2018.

Order Date :- 31.1.2018

OP

Court No. - 21

Case :- WRIT - C No. - 4109 of 2018

Petitioner :- Rajesh Kumar Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Girish Tiwari

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Case called out. No one is present either on behalf of the petitioner or the respondents.

Put up on 13th March, 2018.

Order Date :- 21.2.2018

VKS

Court No. - 37

Case :- WRIT - C No. - 4109 of 2018

Petitioner :- Rajesh Kumar Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Girish Tiwari

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Abhinava Upadhya,J.

Hon'ble Shailendra Kumar Agrawal,J.

As prayed, put up tomorrow.

Order Date :- 13.3.2018

VPC

(Shailendra Kumar Agrawal,J) (Abhinava Upadhya,J)

Court No. - 5

Case :- WRIT - C No. - 4109 of 2018

Petitioner :- Rajesh Kumar Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Girish Tiwari

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Pradeep Kumar Singh Baghel,J.

The petitioner has preferred this writ petition for issuance of writ of mandamus directing the respondent to ensure to carve out chak road on spot for petitioner's land of Gata No. 30 in compliance of order dated 30.1.2015 passed by the Collector in Case No. 01 of 2015 under Section 25-A of U.P. C. H. Act, 1953.

The experience reveals that for petty matters the litigants are approaching this Court under Article 226 of the Constitution. The Delhi High Court in the case of **Kotak Mahindra Bank Ltd. v. Bank of Baroda and another, W.P. (C) No. 9828 of 2015**, has aptly observed that the High Courts have become very liberal in entertaining the writ petitions under Article 226 of the Constitution and the litigants have assumed that writ petition is remedy for all type of illnesses in the society, with the result that roster of all the High Courts are choked with the petty matters and they are unable to decide the important matters, which are becoming infructuous. The Supreme Court also in the case of **Subrata Roy Sahara v. Union of India and others, (2014) 8 SCC 470**, has laid down the law that the time has come when the High Courts should curb the tendency of filing frivolous petitions on petty matters and for that heavy cost should be imposed upon the litigants. In another case in **Phool Chandra and another v. State of Uttar Pradesh, (2014) 13 SCC 112**, the Supreme Court has held that to deprecate the tendency of filing of frivolous and petty matters the High Courts should impose cost on advocates also, who accept brief of such frivolous and petty matters.

In view of the above principles of law, I find that in the present case also, a heavy cost is liable to be imposed upon the petitioner. But having regard to the fact that the petitioner belongs to the marginal section of the Society, no such cost is being imposed. If the petitioner indulges in filing such petition in future, cost shall be imposed upon him in terms of the law laid down by the Supreme Court in the case of Subrata Roy Sahara (**supra**). However, it is open to the petitioner to move appropriate application before the authority concerned, which,

in turn, shall consider the same and pass appropriate order thereon in accordance with law.

With the aforesaid observations, the present petitioner is disposed of .

Order Date :- 28.5.2018

Ram Murti

Court No. - 40

Case :- WRIT - C No. - 4109 of 2018

Petitioner :- Rajesh Kumar Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Girish Tiwari

Counsel for Respondent :- C.S.C., Abhay Nitin Singh, Pranjali Mehrotra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner, learned Standing counsel for the State and Sri Abhay Nitin Singh, learned counsel for respondent no. 3.

The present writ petition has been filed for mandamus commanding the competent authority i.e. respondent no. 3 to take final decision in the matter of the petitioner as per the order/direction issued by Appellate Authority vide order dated 27.4.2017 within the stipulated period of time.

At the very outset, learned counsel for the contesting respondent states that as per direction of Appellate Court dated 27.04.2017, the case of petitioner has been assessed in accordance with provision 5.7 of the Electricity Supply Code 2005 and the due/remaining amount has already been adjusted in the subsequent bill, as such cause to maintain the writ petition no more survives.

Once the grievance of the petitioner has already been redressed by the respondent Authorities, then no further direction is required to be issued in the matter.

The writ petition is disposed of accordingly.

Order Date :- 3.1.2023

S.K.